TriCab Group
Workplace Behaviour Policy

policy

Purpose

The purpose of this Workplace Behaviour Policy is to outline TriCab's commitment to providing a safe, supportive and positive working environment for all employees. All employees have a right to work in an environment free from bullying, aggressive, or harassing conduct, including sexual harassment.

Scope

This policy applies to all TriCab employees, contractors, sub-contractors, job candidates, and anyone acting for, or on behalf of, TriCab Group. This policy covers how TriCab provides services to clients and how it interacts with other members of the public; all aspects of employment, recruitment and selection; conditions and benefits; training and promotion; task allocation; shifts; hours; leave arrangements; workload; equipment and transport; on-site, off-site or after hours work; work-related social functions; conferences, and wherever and whenever staff may be as a result of their TriCab duties staff treatment of other staff, of clients, and of other members of the public encountered in the course of their TriCab duties.

Our Commitment

TriCab is committed to developing and supporting positive working relationships and preventing workplace injuries of any kind, physical or otherwise, by taking reasonable steps to ensure our workplaces are free from unacceptable behaviour. TriCab does not tolerate conduct that can be characterised as discriminatory, harassing, vilifying, bullying, or violent.

Unacceptable Workplace Conduct

The expectations outlined within this policy are not intended to act in place of, or supersede, legislation and related conduct in operating entities outside of Australia. There may be circumstances wherein Australian laws and legislation provide a lower standard of protection or prosecution. All TriCab stakeholders are expected to act in accordance with the laws and regulations of the jurisdictions in which they are located.

Discrimination, bullying, and sexual harassment are unacceptable at TriCab and unlawful under the following Australian legislation:

1) Sex Discrimination Act 1984 (Cth)
2) Racial Discrimination Act 1975 (Cth)
3) Disability Discrimination Act 1992 (Cth)
4) Age Discrimination Act 2004 (Cth)
5) Australian Human Rights Commission Act 1986 (Cth).

Staff (including managers) found to have engaged in such conduct might be counselled, warned or disciplined. Severe or repeated breaches can lead to formal discipline up to and including dismissal.

Discrimination

Discrimination is treating, or proposing to treat, someone unfavourably because of a personal characteristic protected by the law, such as sex, age, race or disability.

Discrimination can occur:

1) **Directly,** when a person or group is treated less favourably than another person or group in a similar situation because of a personal characteristic protected by law (see list below).

   For example, a worker is harassed and humiliated because of their race or a worker is refused promotion because they are 'too old'.

2) **Indirectly,** when an unreasonable requirement, condition or practice is imposed that has, or is likely to have, the effect of disadvantaging people with a personal characteristic protected by law (see list below).

   For example, redundancy is decided based on people who have had a worker's compensation claim rather than on merit.

3) Federal discrimination law protects certain personal characteristics, including:

   a. A disability, disease or injury, including work-related injury;

   b. parental status or status as a carer, for example, because they are responsible for caring for children or other family members;

   c. race, colour, descent, national origin, or ethnic background;

   d. age, whether young or old, or because of age in general;

   e. sex;

   f. industrial activity, including being a member of an industrial organisation like a trade union or taking part in industrial activity, or deciding not to join a union;

   g. religion;

   h. pregnancy and breastfeeding;

   i. sexual orientation, intersex status or gender identity, including gay, lesbian, bisexual, transsexual, transgender, queer and heterosexual;

   j. marital status, whether married, divorced, unmarried or in a de facto relationship or same sex relationship;

   k. political opinion ;

   l. social origin;

   m. medical record;

   n. an association with someone who has, or is assumed to have, one of these characteristics, such as being the parent of a child with a disability.

It is also against the law to treat someone unfavourably because you assume they have a personal characteristic or may have it at some time in the future.

Harassment

Harassment can be defined as any behaviour which makes someone feel intimidated, humiliated, or offended. Depending on the circumstances, any of the following could be harassment if it relates to a person's sex, race, age etc:

- material that is displayed in the workplace (for example on a noticeboard), circulated on paper, sent by fax or put in someone's workspace or belongings
- material put on a computer, sent by email, or put on a website, blog or on social networking
- verbal abuse or comments
- offensive jokes
- offensive gestures
- ignoring, isolating or segregating a person or group - for example not inviting someone to a work event that everyone else is invited to
- initiation ceremonies that involve unwelcome behaviour.

TriCab has a zero-tolerance policy for discrimination and harassment. If you feel you are being harassed, you must report the behaviour to your immediate manager, or to HR.

Bullying

Bullying is unacceptable at TriCab and may also be against occupational health and safety law. For behaviour to constitute bullying it must be **unreasonable**, **repeated**, and pose a **risk to health and safety**. Certain behaviours can still represent workplace violence/aggression if not repeated. If someone is being bullied because of a personal characteristic protected by equal opportunity law, it is a form of discrimination. Bullying can take many forms, including jokes, teasing, nicknames, emails, pictures, text messages, social isolation or ignoring people, or unfair work practices. Behaviours that may constitute bullying include:

1) Sarcasm and other forms of demeaning language
2) Threats, abuse or shouting
3) Coercion
4) Isolation
5) Inappropriate blaming
6) Ganging up
7) Constant unconstructive criticism
8) Deliberately withholding information or equipment that a person needs to do their job or access their entitlements
9) Unreasonable refusal of requests for leave, training or other workplace benefits

Sexual Harassment

Harassment is understood as any abusive, harassing, or otherwise unwanted or inappropriate behaviour. Harassment and abuse will not be tolerated by TriCab. Sexual harassment is understood as any abusive, harassing, or otherwise unwanted behaviour of a sexual nature. Sexual harassment is unlawful and will not be tolerated.

Just because someone does not object to inappropriate behaviour in the workplace at the time, it does not mean that they are consenting to the behaviour. Sexual harassment is covered in the workplace when it happens at work, at work-related events, between people sharing the same workplace, or between colleagues outside of work. All staff and volunteers have the same rights and responsibilities in relation to sexual harassment. A single incident is enough to constitute sexual harassment – it doesn't have to be repeated.

Sexual harassment is a specific and serious form of harassment. It is unwelcome sexual behaviour, which could be expected to make a person feel offended, humiliated or intimidated. Sexual harassment can be physical, spoken or written. It can include:

1) Comments about a person's private life or the way they look;
2) Sexually suggestive behaviour, such as leering or staring;
3) Brushing up against someone, touching, fondling or hugging;
4) Sexually suggestive comments or jokes;
5) Displaying offensive screen savers, photos, calendars or objects;
6) Repeated unwanted requests to go out;
7) Requests for sex;
8) Sexually explicit posts on social networking sites;
9) Insults or taunts of a sexual nature;
10) Intrusive questions or statements about a person's private life;
11) Sending sexually explicit emails or text messages;
12) Inappropriate advances on social networking sites;
13) Accessing sexually explicit internet sites.
14) Behaviour that may also be considered to be an offence under criminal law, such as physical assault, indecent exposure, sexual assault, stalking or obscene communications.

All incidents of sexual harassment require employers and managers to respond quickly and appropriately. TriCab recognises that comments and behaviour that do not offend one person can offend another. This policy requires all staff and to respect other people's limits. TriCab values diversity and inclusion and believes in doing what we can to support gender equality within our workforce. Employees are encouraged to report any incidents of workplace harassment to the employee's manager, Human Resources Manager, or a member of TriCab Senior Management Team.

Workplace Violence and Aggression

Workplace violence and aggression can be any incident where a person is abused, threatened or assaulted at the workplace or while they are carrying out work. For example, violence or aggression may happen:

1) At a worker's usual workplace
2) Where a worker is working remotely, including if the person's workplace is their home
3) In a place where the worker is undertaking work at a different location (such as a client's home), or
4) When a worker is engaging in a work-related activity (such as a work-related corporate event of if you host a work-related social activity like a Christmas party).

Workers may experience violence and aggression when they are not at work from risks which arise at the workplace. For example, if a worker receives abusive text messages after work from a colleague or client. Workplace violence and aggression covers a broad range of actions and behaviours that create a risk to health and safety, for example:

1) Physical assault such as biting, scratching, hitting, kicking, pushing, grabbing, or throwing objects
2) Intentionally coughing or spitting on someone
3) Sexual assault or any other form of indecent physical contact
4) Harassment or aggressive behaviour that creates a fear of violence, such as stalking, sexual harassment, verbal threats and abuse, or yelling and swearing
5) Hazing or initiation practices for new or young workers
6) Gendered violence, which is any behaviour directed at any person or that affects a person because of their sex, gender or sexual orientation, or because they do not adhere to socially prescribed gender roles, that creates a risk to health and safety
7) Violence from a family or domestic relationship when this occurs at the workplace, including if the person's workplace is their home

Acts such as assault, stalking and obscene or threatening communications (e.g. phone calls, letters, emails, text messages and posts on social media) may be offences under criminal law.

These behaviours can come from a range of sources including:

1) External violence and aggression from customers, clients, patients, members of the public or from other businesses e.g. between a plumbing and an electrical sub-contractor at the same work site, or a delivery person and a retail worker

2) Internal violence and aggression from other workers, supervisors or managers.
    a. It can be:
        i. Physical or psychological
        ii. Verbal, written or online
        iii. One off or repeated incidents
        iv. Lower-level behaviours such as name-calling through to more serious acts like physical assault, including criminal offences
        v. In person or can include threats by correspondence, electronic means or online (such as via social media platforms).

Violence or aggression may also be gendered in nature. Gendered violence is any behaviour directed at any person or that affects a person because of their sex, gender or sexual orientation, or because they do not adhere to socially prescribed gender roles, that creates a risk to health and safety. This includes violence targeted at someone because they identify as lesbian, gay, bisexual, transgender, intersex, queer or asexual (LGBTIQA+). Gendered violence can appear in many forms, for example rigid workplace norms based on gender stereotypes, different uniform requirements for men and women, or negative comments about a worker's sexual orientation or the way they look.

Under WHS Laws, all workers including employees, contractors, subcontractors, labour hire employees, outworkers, apprentices or volunteers have a duty to:

- take reasonable care for their own health and safety while at work
- take reasonable care to not adversely affect others' health and safety
- comply with reasonable instructions
- co-operate with reasonable policies and procedures.

Victimisation

Victimisation is subjecting or threatening to subject someone to a detriment because they have asserted their rights under equal opportunity law, made a complaint, helped someone else make a complaint, or refused to do something because it would be discrimination, sexual harassment or victimisation. It is also victimisation to threaten someone (such as a witness) who may be involved in investigating an equal opportunity concern or complaint.

Victimisation is against the law and is a very serious breach of this policy and likely (depending on the severity and circumstances) to result in formal discipline against the perpetrator. TriCab has a zero-tolerance approach to victimisation.

Gossip

It is unacceptable for employees at TriCab to talk with other staff members, clients or suppliers about any complaint of discrimination or harassment. Breaching the confidentiality of a formal complaint investigation or inappropriately disclosing personal information obtained in a professional role (for example, as a manager) is a serious breach of this policy and may lead to formal discipline.

All staff are entitled to:

1) Recruitment and selection decisions based on merit and not affected by irrelevant personal characteristics;
2) Work free from discrimination, bullying, violence and aggression, and sexual harassment;
3) The right to raise issues or to make an enquiry or complaint in a reasonable and respectful manner without being victimised;
4) Reasonable flexibility in working arrangements, especially where needed to accommodate their family responsibilities, disability, religious beliefs or culture;
5) The right to work in a healthy and safe environment;
6) The right to be treated with respect;
7) To be treated fairly and equally.

All employees must ensure they:

1) Comply with this Policy, the standards of behaviour outlined within the policy, and the Grievance Complaints and Dispute Resolution Policy Procedure;
2) Do not engage in unacceptable workplace behaviour when they participate in any work-related activity (regardless of its location);
3) Do not engage in any behaviours as outlined in the policy under any circumstances;
4) Read and understand this policy, including that behaviour outlined within may represent misconduct and be grounds for immediate dismissal;
5) Undertake training as and when requested by the company;
6) Do not engage in out-of-hours conduct that creates a hostile workplace for any employee;
7) Do not aid or encourage other persons to engage in unacceptable workplace behaviour or related out-of-hours conduct;
8) Treat everyone with dignity, courtesy, and respect, including avoiding gossip and respecting the confidentiality of complaint resolution procedures.

Managers and supervisors must also:

1) Model appropriate standards of behaviour;
2) Take steps to educate and make staff aware of their obligations under this policy and the law;
3) Intervene quickly and appropriately when they become aware of inappropriate behaviour;
4) Act fairly to resolve issues and enforce workplace behavioural standards, making sure relevant parties are heard;
5) Help staff resolve complaints informally;
6) Refer formal complaints about breaches of this policy to the appropriate complaint handling officer for investigation;
7) Ensure staff who raise an issue or make a complaint are not victimised;
8) Ensure that recruitment decisions are based on merit and that no discriminatory requests for information are made;
9) Seriously consider requests for flexible work arrangements.

Merit at TriCab

All recruitment, job selection, renumeration, training and development, performance management and other job-related decisions at TriCab will be based on merit regardless of personal characteristics. It is unacceptable and may be against the law to ask job candidates or employees questions, or to in any other way seek information, about their personal characteristics, unless this can be shown to be directly relevant to a genuine requirement of the position.

Resolving issues at TriCab

TriCab strongly encourages any staff member who believes they have been discriminated against, bullied, sexually harassed or victimised to take appropriate action by contacting the Human Resources Manager. Staff who do not feel safe or confident to take such action may seek assistance from their immediate manager, a member of the Senior Management Team, or any member of the Work Health Safety and Human Resources Team to seek advice and support or action their behalf.

Employee Assistance Program

TriCab staff are entitled to a certain amount of free, professional counselling from our employee assistance program. To access the employee assistance program, contact the TriCab Human Resources Team at hr.au@tricab.com. Employee assistance program counselling is confidential, and nothing discussed with a counsellor will be communicated back to TriCab. Employee assistance program counselling is available free to TriCab staff regardless of whether the issue is related to a workplace problem or some other issue for the staff member.

TriCab will achieve our commitment by:

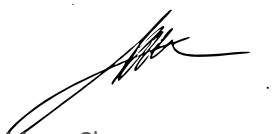
1) Implementing the Policy and related procedures that:
    a. Are accessible and effectively communicated to employees;
    b. Clearly define unacceptable workplace behaviour;
    c. Provide a formal and informal complaints system that gives employees advice and support and a mechanism for reporting, investigation and resolving complaints; and
    d. Identifies and manages culture and systemic issues.
2) Ensuring that our employees, clients, and subcontractors are informed about our vision of working relationships.
3) Ensuring that employees and subcontractors **must** comply with this Policy Statement and the Grievance Complaints and Dispute Resolution Policy Procedure.
4) Encouraging employees to use the Grievance Complaints and Dispute Resolution Policy Procedure if they believe they have been bullied, discriminated against, harassed, vilified, or exposed to occupational violence.
5) Ensuring that all complaints are promptly and appropriately managed.

Breaches of this Policy

Unacceptable workplace behaviour will not be tolerated under any circumstances by TriCab. TriCab take breaches of this policy seriously and will take disciplinary action against any employee who breaches this Policy, related policies, and/or TriCab's Grievance Complaints and Dispute Resolution Policy Procedure. Legal action can be taken against individuals who engage in bullying, unlawful discrimination, harassment (including sexual harassment), vilification, and occupational violence because such conduct is unlawful.

All TriCab employees deserve to be treated with dignity, courtesy, and respect in the workplace. "Treat others as you wish to be treated" is a simple statement that should be observed when working together.

Authorised by:



Meng Chong
General Manager – TriCab Group

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policy

Policy and procedure – agreement sign off sheet

I acknowledge that I have read TriCab's Workplace Behaviour Policy, and understand its contents and definitions. I agree to abide by the policy at all times and comply with the expectations and company commitments outlined within the policy. I understand that failure to abide by this policy may result in disciplinary action, up to and including termination of my employment or contract with TriCab.

Full Name	Signature	Date